



File No.: EXP202409570

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO ADMISSION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CLUB ESPORTIU VILA OLÍMPICA (hereinafter, CLUB ESPORTIU), through the agreement that is transcribed:

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File No.: EXP202409570

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On June 19, 2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to CLUB ESPORTIU VILA OLÍMPICA (hereinafter CLUB ESPORTIU) with NIF G63607022. The facts brought to the attention of this authority are:

That when registering their minor child in sports activities offered by CLUB ESPORTIU, they marked on the registration form their refusal to allow the collection of images of their child by CLUB ESPORTIU, after which the club contacted them via email, urging them to accept the collection of images in order to continue with the registration; stating that the club could not guarantee that the minor would not appear in any of the snapshots they take, which the parent understands to be a procedure contrary to data protection regulations.

Along with the complaint, the following is provided:

- Copy of the registration form.
- Communications exchanged via email with CLUB ESPORTIU.
- Original complaint to the Catalan Data Protection Authority.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to CLUB ESPORTIU for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the complained party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 07/13/2024, as stated in the certificate included in the file.

Although the notification was made electronically, for informational purposes, a copy was sent by postal mail, which was duly notified on 08/30/2024.

In this notification, the complained party was reminded of their obligation to communicate electronically with the Administration, and they were informed of the means to access such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means. On 09/30/2024, CLUB ESPORTIU submitted a response stating that they do not know who made the complaint, as this information has not been provided to them by this Agency. It is informed that the interested party can obtain a copy of the administrative file.

In this document, reference is made to the report issued by the Data Protection Delegate of the club, dated 09/30/2024, which states that for the Summer Campus 2024, there are several communications from parents who, at the time of registration, indicated that they wanted to check the NO box regarding authorization to take photos of their children. In response, the Delegate informs that the association does not have facial recognition technology that guarantees that children do not appear in any group photo taken during sporting events and that the photos taken are only for the entity and solely for the

purpose of maintaining a record of the teams and various sporting events and obtaining awards, some of which may be published in the club's publications.

For all these reasons, it requests that the present file be archived.

THIRD: On September 19, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: According to the report dated 10/23/2024 obtained from the AXESOR tool, the entity CLUB ESPORTIU is an Association established in 2007, with a sales volume of (...) euros as of the date of the report.

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the CLUB ESPORTIU carries out, among other processing activities, the collection and storage of data from individuals such as names, surnames, date of birth, postal address, email address, phone number, health card number, medical certificate, and type of diseases/allergies, if applicable.

The CLUB ESPORTIU carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Obligation Breached. Conditions for Consent

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Regarding the conditions for consent, Article 7 of the GDPR states:

- "1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also refers to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

In the present case, the intention was to enroll a minor in sports activities offered by the CLUB ESPORTIU, marking in the enrollment form the refusal to collect images of the minor while participating in sports at the club. More specifically, the enrollment form, provided by both parties, states the following:

"I give consent for my image to appear clearly identifiable on the Club's website and its social networks in the form of recordings or images captured during the events and activities of the Club YES NO"

"I give consent for my image to appear clearly identifiable on the club's website and its social networks in the form of recordings or images captured during the events and activities of the club." (unofficial translation)

It is recorded in the file, the original enrollment form of the minor, to whom this complaint refers, in which it is clearly noted that for this consent, the NO box has been crossed out.

The CLUB ESPORTIU, after receiving the aforementioned form and other documentation of the minor via email, contacted the parent/guardian via email urging them to accept the collection of images in order to continue with the enrollment.

Evidence of this are the emails contained in the file:

1. From the email account ***EMAIL.1 to the email account of the complainant, with a copy to ***EMAIL.2 stating:

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"You have marked that you do NOT authorize us to take photos or recordings for the club's social media.

The club does not have facial recognition and cannot guarantee that you will not appear in any photo.

Do you wish to continue with the registration?

You must accept this option."

"You have marked that you do NOT authorize us to take photos or recordings for the club's social media.

The club does not have facial recognition and cannot guarantee that you will not appear in any photo.

Do you want to continue with the registration?

(...)." (Unofficial translation)

1.

The parent responds to the previous email as follows:

"Good morning,

Then you should change the form and specify that you cannot comply with both data protection/confidentiality, right?

If we want to continue with the registration."

"Then you should change the form and explain that you cannot comply with data protection/confidentiality, right? (Unofficial translation)

2.

The club reiterates to the parent, from the aforementioned email accounts:

"You must accept the photo consent option in the registration and resend it."

"(...) of photos in the registration and resend it." (Unofficial translation)

Specifically, consent is requested to "appear clearly identifiable on the club's website and its social media in the form of recordings or images," that is, the processing of the minor's image (personal data) would consist of the minor appearing clearly identifiable. From the transcribed emails, it could be deduced that the claimant did not consent to such data processing of their minor child and that, in the event that consent was given, it would not be free. This is because the emails sent by the club would require acceptance of the photo consent option to be able to register the minor; such consent would be tainted from the outset and could be null and void. Furthermore, the fact that the club lacks image anonymization software does not prevent respect for the claimant's will not to appear in photographs and/or videos.

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Therefore, in accordance with the evidence available at this moment of the initiation of sanctioning proceedings, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute an infringement, attributable to CLUB ESPORTIU, for violation of the previously transcribed article.

V

Qualification of the infringement of Article 7 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of the data subjects under Articles 12 to 22;

c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;

d) any obligation under the law of the Member States adopted in accordance with Chapter IX;

e) the failure to comply with a decision or a temporary or definitive limitation of processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purposes of the limitation period, Article 72.1 of the LOPDGDD establishes the following:

"According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

c) The failure to comply with the requirements set forth in Article 7 of Regulation (EU) 2016/679 for the validity of consent."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

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“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damages suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damages suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

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- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, the imposition of a fine would be appropriate in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the business volume of CLUB ESPORTIU is considered, with sales of (...) as of the AXEXOR report date.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 7 of the GDPR, allows for an initial administrative fine of 1,000.00 euros to be set.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 7 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period..."

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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However, in this case, regardless of the above, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, the resolution adopted may require CLUB ESPORTIU to adopt the following measures within 2 months from the date of the enforceability of the resolution concluding this procedure:

To ensure that in the photographs/videos taken by the club at its sporting events, the necessary measures are guaranteed to respect the right to data protection of those who freely choose not to give consent.

And all this in order to ensure compliance with the provisions of Article 7 of the GDPR.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and

to prove compliance with this obligation before this AEPD.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against CLUB ESPORTIU VILA OLIMPICA, with NIF G63607022, for the alleged infringement of Article 7 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT A.A.A. as instructor and B.B.B. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate for Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the

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The corresponding sanction would be an administrative fine of 1,000.00 euros, without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to CLUB ESPORTIU VILA OLIMPICA, with NIF G63607022, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 800.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or waiver of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or waiver of any action or administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (800.00 euros or 600.00 euros), it must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is adhering.

Likewise, it must send the proof of deposit to the General Subdirectorate of Inspection along with the

express communication of the withdrawal or waiver of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

1479-141024

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 31, 2024, CLUB ESPORTIU proceeded to pay the sanction in the amount of 600.00 euros, making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

THIRD: CLUB ESPORTIU has expressly waived any action or administrative appeal against the sanction.

FOURTH: In the initiation agreement transcribed above, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

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Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures," provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve

the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, CLUB ESPORTIU has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or administrative appeal.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 1,000.00 euros.

After CLUB ESPORTIU VILA OLÍMPICA has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of 600.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202409570, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER CLUB ESPORTIU VILA OLÍMPICA to notify the Agency within 2 months from the date this resolution becomes firm and enforceable, regarding the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to CLUB ESPORTIU VILA OLÍMPICA.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or waiver of any action or administrative appeal, the present authority accepts the waiver expressly stated by CLUB ESPORTIU VILA OLÍMPICA, thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

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Consequently, taking into account the provisions of Article 90 of the LPACAP, given that there is no possibility of any administrative appeal due to the express waiver, this resolution shall be final and fully enforceable from the moment of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the

administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the positions of Presidency and Deputy Presidency

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